LEGAL MEMORANDUM

To: ABC Father **From:** X Privacy Law
Date: November 11, 2026
Re: YouTube's suspected collection of your 10-year-old son's information

Bottom line

The reported conduct could violate federal children's privacy law if YouTube collected your son's information online through a child-directed service or knew he was under 13, without legally sufficient parental consent or an applicable exception. California law may provide additional protections. **A violation does not automatically give your family a right to compensation.** The strongest immediate steps are to preserve evidence, exercise parental privacy rights, and consider regulatory complaints while we assess a separate California lawsuit.

Facts and limits. You and your son live in California. You report collection of his name, gender, age, and address without either parent's consent. We assume "name" means his full name and "address" means his home street address. We have not reviewed account records or verified what was collected, when, by whom, or how YouTube knew his age. Collection dates, data sources, applicable rule versions, and account terms must be checked. No live legal database update was available; current law and case status require confirmation before filing.

1 | Federal law: COPPA

When it applies. The Children's Online Privacy Protection Act covers commercial online services directed to children under 13 and other services with **actual knowledge** that they collect personal information online from a child under 13. Your son meets the age requirement. We must establish collection from him (including passive tracking), rather than merely information about him supplied by an adult. YouTube Kids, the content and audience of particular channels, age entered at signup, supervised-account records, and notices to YouTube could establish coverage or knowledge. Merely showing that a child watched ordinary YouTube videos does not by itself establish actual knowledge. (15 U.S.C. §§ 6501–6502; 16 C.F.R. §§ 312.2–312.3.)

What counts and what consent requires. A full name and street address are protected personal information. Age and gender alone generally are not COPPA identifiers, but become covered when combined with an identifying record. Persistent identifiers used to track a child can also qualify. Covered services generally must give notice and obtain **verifiable consent from a parent before collection**, use, or disclosure. Consent from one authorized parent can suffice; both parents need not consent. A child accepting terms or an ordinary age gate is not parental consent. (16 C.F.R. §§ 312.2, 312.4–312.5.)

Application. If YouTube obtained this profile from your son under the conditions above, the reported absence of parental consent supports a COPPA violation. There are narrow exceptions, such as limited contact information to seek consent or identifiers used solely for internal operations; these are not general permission to collect a child's name and home address for advertising. The Rule also requires parental access/deletion rights, reasonable security, and limits on retention. The amended Rule also generally requires separate parental consent for third-party disclosures not integral to the service, including targeted advertising. (16 C.F.R. §§ 312.5–312.6, 312.8, 312.10.)

Enforcement, not a private COPPA suit. The FTC and state attorneys general enforce COPPA; it supplies no private damages action. In the **2019 FTC/New York settlement with Google and YouTube**, the companies agreed to pay $170 million over alleged collection of identifiers from viewers of child-directed channels without parental consent and to change practices. That settlement is relevant precedent for enforcement, not a ruling proving your son's claim or a compensation fund for him. (15 U.S.C. §§ 6502–6504; D.D.C. No. 1:19-cv-02642, stipulated order, Sept. 2019.)

2 | California protections and potential claims

CCPA/CPRA: collection is different from sale or sharing. The California Consumer Privacy Act, as amended by the California Privacy Rights Act, applies to covered businesses; Google/YouTube is very likely covered, subject to confirming the responsible entity. Your son is a California consumer. His name, address, age, and gender are personal information under this broader law. Businesses must provide collection notices and observe purpose and proportionality limits. You can seek access, correction, deletion, and information about disclosures on his behalf, subject to verification and statutory exceptions. (Cal. Civ. Code §§ 1798.100–1798.115, 1798.140.)

California does **not** impose a blanket parental-consent requirement for every collection of a child's ordinary personal information. But a business with actual knowledge that a consumer is under 16 may not **sell** or **share** that information without affirmative authorization; for a child under 13, authorization must come from a parent or guardian. "Sharing" includes cross-context behavioral advertising, even without a monetary sale. Willful disregard of age counts as actual knowledge. We need evidence of advertising disclosures, not merely internal collection, to apply this rule. (Cal. Civ. Code §§ 1798.120(c)–(d), 1798.140.)

Important remedy limit. The California Privacy Protection Agency and Attorney General enforce these duties. The CCPA's private remedy is narrowly limited to specified security breaches caused by inadequate reasonable security; ordinary unauthorized collection, sale, or sharing alone is not enough. The reported facts do not establish such a breach, and name/address/age/gender alone generally do not meet its narrower breach-data definition. Qualifying cases may recover actual or statutory damages, subject to the statute's prerequisites and procedures. The CCPA cannot be repackaged as a private claim under another law. (Cal. Civ. Code §§ 1798.150, 1798.155; 1798.81.5(d)(1)(A).)

Other California duties. CalOPPA requires covered commercial websites to post a privacy policy explaining collection and disclosure practices; it is a notice law, not universal parental-consent legislation. A missing or materially misleading policy could support regulatory review. California's interception law is relevant only if evidence shows interception of communications without required consent, not simply collection of account details. (Cal. Bus. & Prof. Code §§ 22575–22579; Cal. Penal Code § 631.)

3 | What courts say about a private lawsuit

State claims are not automatically barred. In *Jones v. Google LLC*, 73 F.4th 636 (9th Cir. 2023), involving alleged tracking of children watching YouTube, the Ninth Circuit held that COPPA did not preempt state claims imposing consistent duties. This matters because a California claim can potentially proceed despite the lack of a private COPPA action. It does not establish liability, award damages, or excuse proving every element of a state claim. (See 15 U.S.C. § 6502(d).)

Privacy claims require a serious intrusion. California's constitutional privacy protection (Cal. Const., art. I, § 1) requires a protected privacy interest, a reasonable expectation of privacy, and a serious invasion; common-law intrusion also requires an intentional, highly offensive intrusion. A child's secretly collected home address and detailed profile could support these claims, depending on consent, use, disclosure, and context. *Hill v. NCAA*, 7 Cal. 4th 1 (1994), supplies the constitutional framework. *In re Facebook, Inc. Internet Tracking Litigation*, 956 F.3d 589 (9th Cir. 2020), allowed privacy theories concerning alleged secret tracking to proceed; it did not make all online data collection unlawful.

Unfair competition is narrower than it sounds. A claim under California's Unfair Competition Law may rely on unlawful or deceptive conduct, potentially including COPPA-based duties, but a private plaintiff must have lost money or property because of it. Privacy concerns alone may not satisfy that rule. Relief is generally an injunction and restitution, not ordinary compensatory damages. We must identify a qualifying loss and cannot use the CCPA to evade its remedy limits. (Cal. Bus. & Prof. Code §§ 17200, 17203–17204.)

4 | Your options and our recommended plan

1. Preserve evidence before changing or deleting accounts. Save screenshots, account and supervised-account settings, entered birth date, consent screens, emails, privacy notices and terms in effect, viewing/channel history, advertising settings, and any available data export. Record when you discovered each issue. Preserve records showing which parent created the account and whether anyone supplied the information on your son's behalf. Do not publish his profile or send additional sensitive data unnecessarily. We should ask Google/YouTube to preserve relevant records before seeking deletion.

2. Make a targeted parental request. Through verified Google/YouTube privacy channels, request the specific data held about your son, sources and collection dates, uses, retention periods, recipients, sales/sharing, and the basis for claiming consent. Ask to review his information under COPPA, stop future collection, and delete data after evidence is secured, subject to lawful exceptions. Exercise CCPA access, correction, deletion, and applicable opt-out rights as his parent. CCPA requests ordinarily receive a response within 45 days, with a possible additional 45 days upon notice. A privacy request may not produce every internal log; litigation discovery may be necessary. (16 C.F.R. § 312.6; Cal. Civ. Code §§ 1798.105–1798.106, 1798.110, 1798.130.)

3. Complain to regulators. Submit the documented facts to the FTC through ReportFraud.ftc.gov and to the California Attorney General through its consumer privacy complaint process. A CCPA complaint may also be filed with the California Privacy Protection Agency. Identify your son's age, California residence, the data involved, the basis for believing YouTube knew his age, and the absence of parental authorization. Regulators can investigate and seek orders or penalties, but they control enforcement; a complaint does not guarantee an investigation or an individual payment.

4. Evaluate a demand, settlement, or California lawsuit. After reviewing the records, we can seek an explanation and negotiated deletion, cessation, or compensation, and assess constitutional privacy, intrusion, and any supported unfair-competition or contract/misrepresentation theories. A contract claim needs an applicable promise, breach, and recoverable loss; we have not yet identified those facts. Depending on proof, privacy claims may support an injunction and compensatory damages for proven injury. There is no automatic per-child private COPPA award. A class action is possible only if the evidence and class-certification requirements support it; it is not a substitute for an individual claim.

Practical limits before suing

Whose claim and what injury? The privacy claims ordinarily belong to your son. You would generally seek appointment as his guardian ad litem to litigate for him; your status as father does not itself create a personal damages claim. A minor's settlement generally requires court approval. In federal court, each claim and requested remedy must satisfy standing, including a concrete injury and, for forward-looking relief, a real threat of future harm. A statutory violation alone is insufficient; a sufficiently serious privacy invasion can matter even without a financial loss. (*TransUnion LLC v. Ramirez*, 594 U.S. 413 (2021); Fed. R. Civ. P. 17(c); Cal. Code Civ. Proc. § 372.)

Timing, terms, and cost. We must verify the collection and discovery dates, responsible Google/YouTube entity, applicable terms, any arbitration/class-waiver provisions, and whether prior proceedings or releases affect the claim. A minor's ability to avoid contract terms needs separate review. Limitations periods vary; the UCL generally has a four-year period, and privacy tort claims may face shorter periods. Do not assume minority tolls every deadline or that a regulator complaint stops the clock. We should weigh proof of injury, available relief, litigation costs, and the firm's fee arrangement before filing. (Cal. Bus. & Prof. Code § 17208.)

Recommendation. Preserve the records now, then pursue verified parental information requests and documented regulatory complaints. Decide whether to sue only after establishing what YouTube collected, why COPPA applies, whether data was sold or shared, and what independent California claim and injury the evidence supports.